



KENYA NATIONAL COMMISSION ON HUMAN RIGHTS REPARATIONS GUIDELINES, 2026

ARRANGEMENT OF CLAUSES

PART I – PRELIMINARY

1. Citation and Commencement
2. Interpretation
3. Objects and Purpose of the Guidelines

PART II – REGISTRATION AND VERIFICATION OF VICTIMS

4. Registration Period
5. Registration Process
6. Registration of Vulnerable Persons
7. Verification Process
8. Determination and Communication of Eligibility
9. Standard of proof
9. Confidential Information

PART III – REPARATIONS

10. Restitution
11. Satisfaction
12. Rehabilitation
13. Guarantees of non-repetition
14. Compensation

PART IV – REVIEW OF ELIGIBILITY DETERMINATIONS AND REPARATIONS AWARDS

15. Review Procedure
16. Progress Reports

PART V– REPORTS AND RECORDS

17. Maintenance of Records
18. Disclosure of Information
19. Monitoring and Evaluation
20. Accounts and Audit

Guiding Principles	Implementation of these Guidelines shall be guided by the National Values and Principles of Governance under Article 10 of the Constitution and the United Nations Basic Principles and Guidelines on the Right to a Remedy and in particular the following: - Victim Centered Approach All processes shall prioritize the needs, dignity, and well-being of victims. Victims shall be treated with respect, their voices heard, and their particular circumstances taken into account. Accessibility The registration and verification processes shall be designed to be accessible to all victims, including those in remote areas, persons with disabilities, and other vulnerable groups. Reasonable accommodations shall be made where necessary. Non- Discrimination Victims shall not be discriminated directly or indirectly on any ground, including race, sex, pregnancy, marital status, health status, ethnic or social origin, colour, age, disability, religion, conscience, belief, culture, dress, language or birth. Transparency and Accountability Processes, criteria, and decisions shall be communicated clearly to victims and the public. Any agency implementing the Guidelines shall be accountable for the use of public funds and the fairness of outcomes. Fair administrative action Victim(s) have the right to reparations that is expeditious, efficient, lawful, reasonable and procedurally fair. Do no Harm All interactions with victims shall be conducted in a manner that avoids causing further harm or trauma. Confidentiality shall be strictly maintained, and special care taken in the handling of sensitive information. Holistic Assessment Reparations shall be assessed comprehensively, taking into account physical, psychological, social, and economic impacts. Such reparations shall be adequate, effective, and prompt.
Citation and Commencement	1. These Guidelines may be cited as Reparations Guidelines, 2026 and shall come into force upon publication in the Kenya Gazette.

Interpretation

2. In these Guidelines unless the context otherwise requires—

“child” means a person below the age of eighteen years at the time of the violation;

“Collective harm” means injury, trauma, or systemic deprivation suffered by a group of people as a result of their shared identity, geographic location, or communal status;;

“collective reparations” means reparations for collective harm;

“commission” means the Kenya National Commission on Human Rights established under Section 3 of the Kenya National Commission on Human Rights;

“compensation” means a monetary or non-monetary award made to a victim;

“complainant” means a person who lodges a claim to any state agency relating to human rights violations;

“implementing agency” means any state agency responsible for managing, executing or supervising reparations;

“personal data” has the same meaning as defined under the Data Protection Act;

“public officer” has the same meaning assigned to it under Article 260 of the Constitution;

"reasonable basis to believe" means a low evidentiary threshold that deems a claim valid if it is credible and aligns with the known facts of a violation, even in the absence of formal documentary proof;

“rehabilitation” means the provision of medical, psychological, legal, and social services intended to restore a victim’s dignity and ability to function within society after a gross violation of human rights; ;

“reparations” means any measure or combination of measures intended to restore a victim to the condition obtaining prior to a human rights violation or where full restoration is not possible to address the consequences of the violations through compensation, rehabilitation, restitution, satisfaction and guarantees of non-repetition;

“restitution” means any measure or combination of measures intended to restore a victim to the condition obtaining prior to a human rights

	violation; “state agency” means a commission, office, agency or other body established under the Constitution or any other written law; “verification” means the process of validating a claimant’s status as a victim to determine their eligibility for reparations under these Guidelines; and “victim” means any person who suffered harm , including physical or mental injury, emotional suffering, economic loss or substantial impairment of their human rights and shall include indirect victims being family or dependents of the victim especially of cases of enforced disappearance, extrajudicial killing, or where the direct victim is incapacitated;
	PART II – REGISTRATION AND VERIFICATION OF VICTIMS
Sources of claims	3. In conducting identification and registration of claims for reparations, a State Agency shall consider; (a) KNCHR’s database (b) Relevant State Agencies Databases and Reports; (c) Any other existing databases compiled by stakeholders and verified by relevant State Agency
Who can lodge a claim?	4. (1) Every person has the right to lodge a claim to any relevant State Agency for reparations under these guidelines (2) In addition to a person acting in their own interest, a claim under clause (1) may be instituted by— (a) a person acting on behalf of another person who cannot act in their own name; (b) a person acting as a member of, or in the interest of, a group or class of persons; (c) a person acting in the public interest; (d) an association acting in the interest of one or more of its members; or (e) a group of people who suffered collective harm in the context of Human Rights violations. 5. (1) A claim may be lodged— (a) in a prescribed form and signed by the Victim or their

- representative;
- (b) orally; or
- (c) through official electronic means.

(2) Where a claim is lodged orally, the State Agency shall reduce it into writing in the prescribed form, and signed by the Victim or their representative.

Requirements for Registration

6. (1) The following information shall be required—

(a) the Complainant's and/or Victim's—

- (i) full name(s) and contact information;
- (ii) age;
- (iii) sex;
- (iv) vulnerability;
- (v) relationship to the victim; and
- (vi) identification documents.

(b) description of the claim (s)—

- (i) the nature of the alleged violation(s);
- (ii) the date, time and location of the alleged violation(s);
- (iii) identifying details of the person(s) alleged to have committed the alleged violation(s), if known;
- (iv) details of any other person(s) who may have witnessed or have information regarding the alleged violation(s), including name(s) and contact information if known;
- (v) age of the victim; and
- (vi) any indirect victim(s) at the time of the alleged violation(s);

(c) supporting documentation including—

- (i) medical reports;
- (ii) media reports;
- (iii) occurrence book number (s) and/or police abstract (s);
- (iv) audio visual evidence;
- (v) claims to relevant public institutions; or
- (vi) public reports.

(2) A State Agency may request such further information or particulars from the victim, their representative or witnesses as may be necessary.

	(3) A State Agency shall ensure reasonable accommodation for vulnerable persons.
Standard of Proof	7. In determining the eligibility of victims, a State Agency shall adopt the <i>reasonable basis to believe</i> evidentiary standard.
Verification Process	8. (1) Every claim submitted under these Guidelines shall be subject to verification to determine eligibility to reparations. (2) Verification shall establish to the satisfaction of a State Agency, the truth, completeness, and the authenticity of the claim including the facts, supporting evidence and compliance with the eligibility criteria under these Guidelines (3) In the verification of claims, a State Agency may- (a) authenticate official documents with the relevant bodies; (b) conduct witness interviews for testimonial evidence; or (c) conduct investigation (s) including site visits.
Determination and Communication of Eligibility	9. (1) After verification, a State Agency shall make a determination on eligibility and communicate it in writing to the victim or the Victim's representative. (2) The determination shall consist of – (a) a statement of the nature of the violation; (b) a description of the relevant category of eligible victims; (c) a description of the registration documents and any other evidence gathered in the investigation; and (d) a statement of eligibility or ineligibility and the reasons thereof.
Grounds for ineligibility	10. A claim shall not be eligible for reparations under these Guidelines if: (a) It based on falsified and or forged documents; (b) It was submitted anonymously without disclosing material information; (c) the same claim is already being processed by a relevant State Agency; (d) the same claim has been determined by a relevant State Agency; (e) The Claimant willfully withholds information that would change the eligibility status; and (f) It is established that the Claimant was an active perpetrator of human rights abuses during the same period for which reparations are sought.

	PART III – REPARATIONS
Reparations	11. (1) Eligible victims shall be awarded reparations in the form of compensation, rehabilitation, restitution, satisfaction, guarantees of non-repetition or a combination of any of the reparation mechanisms, based on the category of victim and nature of the violation, as set out in the Schedule. (2) In determining appropriate reparations, the Implementing Agency shall take into account the socio-economic circumstances of the victim as appropriate and proportional to the gravity of the violation, including: (a) Physical or mental harm; (b) Lost opportunities, including employment, education and social benefits; (c) Material damages and loss of earnings, including loss of earning potential; (d) Moral damage; (e) Costs required for legal or expert assistance, medicine and medical services, and psychological and social support. (3) In effecting reparations, the Implementing Agency shall co- operate with any government Ministries, Departments and Agencies, or any other person or entity, as are relevant and appropriate to provide the most effective reparations. (4) Upon any request by the Implementing Agency for co-operation for the purpose of implementing these Guidelines any person or entity to whom such request is made shall render all such assistance necessary to facilitate provision of the most comprehensive reparations program possible. (5) The Implementing Agency shall prioritize victims with extreme medical conditions and vulnerable individuals or groups. (6) The Implementing Agency shall communicate the determination of reparation awarded in writing to the victim within thirty (30) days.
Restitution	12. (1) The State may consider a range of measures for victims and their families including: (a) Social protection through social housing programs and minimum wages for identified households; (b) Restoration for economic losses;

	(c) Investigations, search, and recovery for families of persons subjected to enforced disappearances and abductions.
Satisfaction	13. The State may : (a) Make official declarations upholding dignity and restoring reputation of victims; (b) Make a comprehensive reconciliatory public apology at various levels of governance for specific violations with express mention of the specific groups being addressed; (c) In consultation with victims and/or their representatives, facilitate memorialization including symbolic recognition for victims of gross human rights violations; (d) Working with communities across the Counties to identify and returning key names of places with high sentimental attachment and which are seen to generate unease among communities (e) Integrate transitional justice as part of Kenya's educational curriculum; and (f) Foster reconciliation, national cohesion and integration.
Rehabilitation	14. The State may provide: (a) comprehensive medical support to victims and survivors with priority for vulnerable groups including trauma counseling, psychiatric assistance, physiotherapy and mobility aids (b) family support programs Trauma counseling, Post-Traumatic Stress Disorder therapy, (c) Support for collective/group therapy for communities that suffered similar violations (d) community health centers, schools, or memorial sites in affected regions; scholarships for affected families (e) support social protection including economic empowerment; (f) provide legal assistance for appropriate claims; (g) Support Technical, Vocational, Education and Training for victims and survivors, (h) Enhance equitable use of the Equalization Fund to reduce marginalization;
Guarantees of non-repetition:	15. (1) To guarantee non-repetition, the State shall put in place measures to address systemic human rights violations. (2) To ensure accountability for human rights violations, the State shall prioritize the following: (a) Ensure accountability by public officers responsible for human

	rights violations through investigations and prosecution; (b) Continuous Security and Justice Sector Reforms for enhanced compliance with human rights principles and standards; (c) Strengthen independent oversight by adequately resourcing Constitutional Commissions and Independent Offices; (d) Ensure Legal and Policy reforms including the ratification and domestication of relevant regional and international treaties and convention; (e) Mainstream Human Rights across Security and Justice Sector agencies.
Compensation	16. (1) Victims may be awarded monetary and/or non-monetary compensation as provided for under schedule 1 of these Guidelines. (2) Monetary compensation shall be paid to the victims or their representatives. (3) In determining the monetary compensation, the Implementing Agency may upscale the award depending on: (a) Age (b) Vulnerability (c) Severity of harm (d) Socio-Economical factors
PART IV – REVIEW AND APPEAL	
Review Procedure	17. (1) Any complainant aggrieved by the decision of a State Agency on the eligibility and reparations, shall have the right of review against the said decision. (2) A request for reconsideration must be submitted in writing and shall include – (a) the basis upon which the request is being made; (b) submissions in support of the request; and (c) materials in support of the request, if any. (3) A request for reconsideration will not be granted unless a State Agency is satisfied that there are new facts, or supporting materials that could not reasonably have been provided earlier. (6) A decision on the reconsideration and the reasons thereof shall be communicated in writing within thirty (30) days.

	PART V - REPORTS AND RECORDS
Progress Reports	18. (1) The Implementing Agency shall prepare, submit to Parliament and publicize periodic reports detailing: (a) the number of claims received; (b) the categories of victims and nature of violations for which reparations were granted; (c) form of reparations granted; and (d) reparations programmes implemented. (2) The Commission shall submit and publicize an overall report on the implementation of the Reparations frameworks and programmes.
Maintenance of Records	19. The Implementing Agency shall ensure that all records relating to the implementation of the reparations are kept and maintained in accordance with relevant data protection and management laws.
Disclosure of Information	20. Pursuant to Article 35 of the Constitution and relevant legislation, any person may request for information under these Guidelines.
Accounts and Audit	21. (1) The Implementing Agency shall maintain proper books and records of account of the expenditure relating to implementation of Reparations (2) All accounts relating to implementation of Reparations, shall be audited in accordance with the Public Audit Act and other relevant laws
Monitoring and Evaluation	22. The Commission shall periodically monitor and evaluate the implementation of the reparations to ensure accountability and track progress in implementation.

SCHEDULE 1:

QUANTUM OF DAMAGES FOR HUMAN RIGHTS VIOLATIONS

The following framework establishes the criteria and monetary benchmarks for determining compensation for human rights violations.

I. Assessment Criteria

In determining the appropriate quantum of damages, the **Implementing Agency** shall consider:

- **The nature** of the specific violation.
- **The duration** over which the alleged violation occurred.
- **The direct impact** and harm suffered by the victim.
- **Broader implications**, including the necessity to deter future violations, uphold the rule of law, and ensure constitutional compliance by public and private entities.

II. Compensation Schedule

Nature of Violation	Specific Classification	Quantum of Damages (Monetary)	Non-Monetary Compensation
Right to Life	Fatal shootings, death in custody, or during demonstrations	Minimum Kshs 3,000,000 plus Medical and Funeral Expenses	Public Apology
	Unlawful arrest and detention	Minimum Kshs 200,000	Public Apology
Freedom and Security of the Person	Missing Person		Public Apology, Psychosocial support, and Investigation
	Severe Physical Injury (e.g., Bullet wounds, amputation)	Minimum Kshs 1,000,000 plus actual Medical Expenses	Public Apology, SHA, and Disability Benefits
	Moderate Physical Injury (e.g., Dislocation, fractures)	Minimum Kshs 500,000 plus Medical Expenses	Public Apology, SHA, and Disability Benefits
	Minor Physical Injury (e.g., Bruises, cuts)	Minimum Kshs 100,000	Public Apology, SHA, and Disability Benefits

	Psychological trauma	Minimum Ksh 250,000	Public Apology and Psychosocial support (SHA)
Freedom from Torture	Sexual and Gender-Based Violence (SGBV)	Kshs 4,000,000 plus Medical Expenses	Public Apology and Psychosocial support (SHA)
	Enforced Disappearances / Abductions	Minimum Kshs 2,000,000	Psychosocial support (SHA)
Assembly and Petition	Unlawful dispersal of peaceful demonstrations; denial of rights	Minimum Kshs 100,000	Public Apology
Right to Property	Destruction of Property (Buildings/Motor Vehicles)	Minimum Kshs 100,000 or (depending on valuation/destruction)	Public Apology
	Looting and Loss of Business	Minimum Kshs 100,000 or actual costs per valuation	Public Apology
Right to Health	Denial of Medical care post-injury	Minimum Kshs 200,000	Public Apology